



February 15th 2016 Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=pNqTeyWPRjk
Publication Date	2016-02-15T22:41:40Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Report

Meeting Date: February 15, 2016

Presiding Officer: Mr. Reagan (Board President)

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** [00:00:57](#) Statutory Public Hearing regarding the Assignment of Tax Sale Certificates to a Non-Profit Entity (New Kingdom Builders).
- **Summary of Discussion:**
 - Pastor Henry Hogan of New Kingdom Builders presented a proposal involving approximately 7<U+2013>8 parcels to build a new church, two homes, an incidental daycare facility, and a food pantry serving roughly 200 people monthly.
 - Brad King (City of Muncie) and local residents raised concerns regarding the complete lack of existing infrastructure (roads, storm water, sewage) in that area, noting that the city/sanitary district has no plans to install utilities and that the developer/church would bear the full cost.
 - Residents and community representatives (including Sherman Bell, Donald Shaw, and representation for Hurley Goodall) voiced strong opposition to a church and food pantry in a quiet residential neighborhood, citing concerns over traffic, property values, neighborhood character, and historical property boundaries (including a shed sitting on disputed/adjacent lines).

- Courtiers Dawson and Frank Scott (White River Community Council) spoke as mediators, noting that while the infrastructure cost is high, the project could potentially bring much-needed utility improvements to a long-vacant area, though many residents expressed a preference for the parcels to be put back on the tax rolls so adjacent property owners could purchase them.
 - The board requested that Pastor Hogan provide detailed site plans and financials to the commissioners' office before any final decision is made.
 - **Action & Vote Disposition:** 00:24:52 Motion to close the public hearing passed unanimously by voice vote. Resolution 2016-006 associated with this item was subsequently tabled during the regular meeting 00:59:35.
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2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Called to order at 9:00 AM on February 15, 2016, by Board President Mr. Reagan.
 - **Attendance:**
 - **Present:** Mr. Reagan, Mr. Henry, Mr. Matthewsson (full board present).
 - **Absent:** None.
 - **Presiding Officer:** Mr. Reagan.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening roll call and recitation of the Pledge of Allegiance 00:00:10.
 - **Approval of Minutes:** 00:25:33 Motion made and approved to adopt the minutes from three prior meetings: the February 1, 2016 regular commissioners meeting, the February 2, 2016 executive commissioners meeting, and the February 10, 2016 executive commissioners meeting. Passed by voice vote.
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4. Substantive Business & Board Action

- 00:25:09 **Board Appointments: Delaware County Redevelopment Commission**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Appointment of Tom Roberts, Ricky Saide, and James Brooks to the Delaware County Redevelopment Commission.
 - **Action & Vote Disposition:** Approved by Voice Vote.
- 00:26:07 **Presentation: Selma Town Drainage Issues**
 - **Sponsor / Presenter:** Christopher Cook (Selma Town Board of Directors) and Wayne Bailey (Commonwealth Engineers).

- **Deliberation Summary:** Presented a slide deck regarding severe flooding on Jackson Street between Union Street and South Albany Street during heavy rain events<U+2014>an issue persisting for 15+ years. Flooding shuts down Jackson Street for 1<U+2013>2 days, reroutes school buses for Selma Elementary, and threatens nearby homes. Estimated total project cost for new inlets and storm sewer connection is approximately \$297,000. Selma is currently establishing a storm water utility and requested financial assistance from county commissioners.
 - **Action & Vote Disposition:** Informational presentation only; no formal vote taken. Commissioners agreed to review accounts for potential assistance.
- **00:28:38 Contract Extension: Teamsters Local Union 135**
 - **Sponsor / Presenter:** County Commissioners / Staff.
 - **Deliberation Summary:** Ongoing contract negotiations necessitate an extension of the current labor agreement.
 - **Action & Vote Disposition:** **00:38:55** Motion to extend the contract with Teamsters Local Union 135 until March 31, 2016. Passed by voice vote.
- **00:39:35 Contract Agreement: Youth Opportunity Center**
 - **Sponsor / Presenter:** County Commissioners.
 - **Deliberation Summary:** Item brought forward for discussion.
 - **Action & Vote Disposition:** Removed from the agenda by board action.
- **00:39:40 Property & Casualty / Workers' Compensation Insurance Renewal**
 - **Sponsor / Presenter:** John Parker (USI Insurance Services / First Merchants Insurance Services).
 - **Deliberation Summary:** Reported a decent claims year for workers' compensation and extremely low property/casualty claims. Marketed the program to three carriers (HCC Insurance renewal quote and a competitive Travelers Insurance quote). Outlined three decision options: stay with current carrier, move to Travelers with full occurrence form, or move to Travelers with a claims-made form. Parker noted the claims-made form is safe, utilized by 15 other Indiana counties, and provides substantial savings to taxpayers even when accounting for future tail coverage.
 - **Action & Vote Disposition:** **00:45:30** Motion to approve Travelers Insurance with the claims-made form. **Roll Call Vote:** Passed (Mr. Cain: Yes, Mr. Reagan: Yes, Mr. Henry: Yes).
- **00:48:56 Agreement for Recording Services**
 - **Sponsor / Presenter:** County Commissioners.
 - **Deliberation Summary:** Agreement between Delaware County Commissioners and Mr. Schlusser / Endpoint Creative Services for recording board meetings.
 - **Action & Vote Disposition:** **00:49:12** Approved by Voice Vote.
- **00:49:23 Ordinance 2016-002: Cost of Grant**
 - **Sponsor / Presenter:** County Staff.
 - **Deliberation Summary:** Presented for board action.

- **Action & Vote Disposition:** Handled and advanced via board motion. Passed by voice vote.
- **00:49:51 Ordinance 2016-003: Family Court Project Fund**
 - **Sponsor / Presenter:** Lamb of Scriven's Court Administrator.
 - **Deliberation Summary:** Request to create a fund for depositing state funds (\$50,000) received for the Family Court Project and to suspend the rules for immediate deposit.
 - **Action & Vote Disposition:** Rules suspended and Ordinance 2016-003 approved by voice vote.
- **00:51:06 Ordinance 2016-004: Comprehensive Zoning Map Amendment**
 - **Sponsor / Presenter:** Martin Moody (Planning Commission Office).
 - **Deliberation Summary:** Rezoning request for a property located at the northwestern corner of Philip Drive and Hoyt Avenue, changing it from Community Business (BC) to R-4 Resident Zone (down-zoning) to match surrounding residential properties along Philip Drive. Forwarded with a favorable recommendation from the Plan Commission.
 - **Action & Vote Disposition:** Approved by Voice Vote.
- **00:53:17 Resolution 2016-004: Sale of Tax Sale Properties to Adjacent Owners**
 - **Sponsor / Presenter:** Tax Sale Deputy / Auditor's Office.
 - **Deliberation Summary:** Resolution covering 34 severely delinquent properties that have been through multiple tax sales, allowing adjacent property owners to apply for purchase and place them back on tax rolls.
 - **Action & Vote Disposition:** 00:54:23 Approved by Voice Vote.
- **00:54:39 Resolution 2016-005: Tax Sale Certificates for Hardest Hit Fund / Demolition**
 - **Sponsor / Presenter:** Brad King (Muncie Redevelopment Commission).
 - **Deliberation Summary:** List of properties targeted by the City of Muncie for the Hardest Hit Fund blight elimination and demolition program. Certain properties feature redevelopment potential for community gardens, side-lots, or new residential builds, while maintaining a 3-year maintenance guarantee.
 - **Action & Vote Disposition:** 00:58:59 Motion to approve Resolution 2016-005 passed by voice vote.
- **00:59:21 Resolution 2016-006: Assignment of Tax Sale Certificates to Non-Profit**
 - **Sponsor / Presenter:** County Commissioners / Planning.
 - **Deliberation Summary:** Tied to the pre-meeting public hearing regarding New Kingdom Builders.
 - **Action & Vote Disposition:** 00:59:35 Motion to table the resolution passed by voice vote.
- **00:59:45 Resolution 2016-007: Annual Confirmation of Comprehensive Zoning Map Changes (2015)**
 - **Sponsor / Presenter:** Martin Moody (Planning Commission Office).

- **Deliberation Summary:** Annual administrative resolution confirming zoning map changes from the previous year (specifically, a down-zoning from R-1 to F-Farming at 650 South and 750 West in Salem Township).
 - **Action & Vote Disposition:** Approved by Voice Vote.
 - **01:00:51 2016 Primary Election Polling Sites**
 - **Sponsor / Presenter:** County Clerk / Election Staff (referenced Patty and Heather).
 - **Deliberation Summary:** Approval of 2016 primary election polling locations, noting one new location update for Precinct 50 at North Side Church.
 - **Action & Vote Disposition:** Approved by Voice Vote **01:01:36**.
 - **01:02:03 Payment of Claims**
 - **Sponsor / Presenter:** County Auditor / Board.
 - **Deliberation Summary:** Review of regular county claims totaling **\$957,117.79**.
 - **Action & Vote Disposition:** **01:02:09** Motion to approve payment of claims passed by voice vote.
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5. Open Public Comment / Citizen Forum

(Note: No separate general public forum period was conducted near the end of the meeting; citizen input was integrated into the pre-meeting public hearing session detailed in Section 1.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **01:02:27** Board President Mr. Reagan announced new internal administrative procedures:
 - Mandatory criminal history and background checks for all new county employees.
 - Employment applications must be routed exclusively through and stamped/approved by Human Resources to prevent departments from bypassing standard hiring channels.
 - Implementation of expanded random drug testing for county employees.
 - Ongoing updates to the employee handbook by attorney Mr. Brook to codify these operational procedures.
 - **Adjournment:** **01:05:21** Official motion to recess/adjourn passed by voice vote.
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